

## Tentative Rulings for July 2, 2026 Department MV1

**To request oral argument, you must notify Judicial Secretary  
Colleen Potts at (760) 904-5722  
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department MV1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,  
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 684 8816**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

**Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.**

1.

| CASE #      | CASE NAME                           | HEARING NAME                                                                                           |
|-------------|-------------------------------------|--------------------------------------------------------------------------------------------------------|
| CVMV2508224 | BANK OF AMERICA, N.A.<br>VS MONTERO | MOTION FOR MONETARY<br>SANCTIONS UNDER CCP 2023.010-<br>2023.040 [POST DISMISSAL<br>COLLATERAL MATTER] |

**Tentative Ruling:** Denied.

The action was dismissed by Plaintiff March 26, 2026. Defendant has provided no authority vesting this court with the post-dismissal jurisdiction to consider this motion.

2.

| CASE #      | CASE NAME                             | HEARING NAME                                                                                                      |
|-------------|---------------------------------------|-------------------------------------------------------------------------------------------------------------------|
| CVMV2601104 | ALLY BANK, A<br>CORPORATION VS GARCIA | HEARING ON NOTICE OF<br>APPLICATION FOR WRIT OF<br>POSSESSION - CLAIM AND DELIVERY<br>BY ALLY BANK, A CORPORATION |

**Tentative Ruling:** Off calendar.

Judgment entered June 22, 2026.

3.

| CASE #      | CASE NAME       | HEARING NAME                                          |
|-------------|-----------------|-------------------------------------------------------|
| CVMV2601805 | MENDOZA VS LEAL | MOTION TO BE RELIEVED AS<br>COUNSEL FOR JESUS MENDOZA |

**Tentative Ruling:** Granted.

Withdrawal is effective as of the date of filing of proof of service of the Order Granting Withdrawal upon Plaintiff.

4.

| CASE #      | CASE NAME                            | HEARING NAME                            |
|-------------|--------------------------------------|-----------------------------------------|
| CVMV2602714 | JPMORGAN CHASE BANK,<br>N.A. VS COLE | MOTION TO SET ASIDE ENTRY OF<br>DEFAULT |

**Tentative Ruling:** Off calendar.

Defendant has failed to file Proof of Service of the motion upon counsel for Plaintiff.